# MICROLOAN AGREEMENT

**Short-term microlending transaction under the Microlending Act 7 of 2018 (Namibia)**

| Reference | Detail |
|---|---|
| Agreement number | **[AGREEMENT NUMBER]** |
| Loan number in our loan book | **[LOAN NUMBER]** |
| Date this agreement is signed | **[DATE OF SIGNATURE]** |
| Place where it is signed | **[PLACE OF SIGNATURE]** |
| Copy | [ ] Borrower's original [ ] Lender's original |
| Revenue stamp | Affix the revenue stamp in the printed box on the original. We pay for the stamp. You are not charged for it. |

**Please read this before you sign.** This agreement is written in plain English on purpose. If any part of it is unclear, stop and ask us. We must explain it to you in a language you understand, and you may ask for it to be read out to you. You may take it away and read it before you sign. Nothing in this document may be signed while it is blank or incomplete.

## 1. WHO THIS AGREEMENT IS BETWEEN

### 1.1 The Lender ("we", "us", "our")

| Item | Detail |
|---|---|
| Registered legal name | Quickserve Financial Services CC |
| Trading as | QuickServe Cashloan |
| Company / close corporation registration number | CC/2026/01904 |
| Physical address (our domicilium) | 3403 Danger Ashipala Street, Swakopmund, Namibia |
| Postal address | **[POSTAL ADDRESS]** |
| Telephone / WhatsApp | +264 81 281 9840 |
| Email | info@quickserve.group |
| Principal officer | Erastus Taapopi Matheus |

### 1.2 The Borrower ("you", "your")

| Item | Detail |
|---|---|
| Full names (as on your ID) | **[BORROWER FULL NAMES]** |
| Namibian identity number | **[ID NUMBER]** |
| Date of birth | **[DATE OF BIRTH]** |
| Marital status | **[SINGLE / MARRIED / DIVORCED / WIDOWED]** |
| Physical street address (your domicilium — see clause 15) | [PHYSICAL STREET ADDRESS, TOWN, NAMIBIA — NOT A POST BOX] |
| Postal address | **[POSTAL ADDRESS]** |
| Mobile number | **[MOBILE NUMBER]** |
| WhatsApp number (if different) | **[WHATSAPP NUMBER]** |
| Email address | [EMAIL ADDRESS OR "NONE"] |
| Language you chose for this agreement | **[LANGUAGE]** |

### 1.3 Your work and income

| Item | Detail |
|---|---|
| Employer name | **[EMPLOYER NAME]** |
| Your job title | **[JOB TITLE]** |
| Staff / payroll number | **[STAFF OR PAYROLL NUMBER]** |
| Employer physical address | **[EMPLOYER STREET ADDRESS]** |
| Employer telephone | **[EMPLOYER TELEPHONE]** |
| Net salary per month (take-home) | N$ **[NET MONTHLY SALARY]** |
| Day of the month you are paid | **[PAY DAY]** |
| Your bank | **[BANK NAME]** |
| Your account number | **[ACCOUNT NUMBER]** |

**1.4** **Your next of kin.** This is a person we may contact only if we cannot reach you at any of the numbers above. We will not discuss your loan, your balance or your arrears with this person.

| Item | Detail |
|---|---|
| Full names | **[NEXT OF KIN FULL NAMES]** |
| Relationship to you | **[RELATIONSHIP]** |
| Telephone | **[NEXT OF KIN TELEPHONE]** |
| Physical address | **[NEXT OF KIN ADDRESS]** |

**1.5** **What this loan is.** This is a microlending transaction as defined in the Microlending Act 7 of 2018. It is a short-term loan of not more than N$100,000.00 which must be repaid, together with all finance charges, within five (5) months of the issue date. Because of that short term, the legal maximum for total finance charges set out in clause 3.5 applies to it.

**1.6** **What the loan is for.** **[PURPOSE OF LOAN]**.

## 2. THE MONEY — WHAT YOU GET AND WHAT YOU PAY

**2.1** **The complete cost of your loan.** The table below is the full cost of this loan when you repay on time. If you pay the amount in row F by the due date, there is nothing further to pay. The only other amounts that can ever arise are: default interest and legal costs, and then only if you do not pay (clause 8); and the small items listed in the Schedule of Fees and Charges (Annexure A), such as a fee for a duplicate copy of a statement. **We will never charge you anything that is not provided for in this agreement or in Annexure A.** If a charge is not written down in one of those places, you do not owe it.

| # | Item | Amount |
|---|---|---|
| A | **Principal debt — the cash we hand to you** | **N$ [PRINCIPAL]** |
| B | Interest at **[INTEREST RATE]** % of the principal, charged once for the whole loan period | N$ **[INTEREST AMOUNT]** |
| C | Service fee (a flat, once-off amount) | N$ **[SERVICE FEE]** |
| D | **Total finance charges (B + C) — everything you pay us above the cash you received** | **N$ [TOTAL FINANCE CHARGES]** |
| E | Total finance charges as a percentage of the principal (D ÷ A) — **must not be more than 30%** | **[TOTAL FINANCE CHARGE PERCENTAGE]** % |
| F | **TOTAL AMOUNT REPAYABLE (A + D)** | **N$ [TOTAL AMOUNT REPAYABLE]** |

**2.2** **The total amount repayable in words:** **[TOTAL AMOUNT REPAYABLE IN WORDS]** Namibian Dollars and **[CENTS IN WORDS]** cents.

**2.3** **Dates and repayments**

| Item | Detail |
|---|---|
| Issue date (the day the cash is paid to you) | **[ISSUE DATE]** |
| Due date (the day the full amount must be in our hands) | **[DUE DATE]** |
| Loan period | **[NUMBER OF DAYS]** days |
| Number of repayments | 1 (one) |
| Amount of that one repayment | **N$ [TOTAL AMOUNT REPAYABLE]** |
| How the cash is paid to you | **[CASH / EFT / E-WALLET]** |

**2.4** This loan is repaid in **one single payment** on the due date. If we ever agree that you may pay in instalments, that arrangement is only valid if it is written down and signed by both of us on an instalment schedule attached to this agreement as Annexure C.

**2.5** **Comparison figure only.** Expressed as a simple annual rate for comparison with other credit, the finance charges on this loan work out to **[ANNUAL FINANCE CHARGE RATE]** % per year, calculated as (D ÷ A) × (365 ÷ loan period in days). **This is only a comparison figure to help you shop around. It is not an extra charge, it is not what you pay, and it does not mean we charge interest each year.** What you actually pay is the single figure in row F, once, for this loan.

**2.6** **No compulsory insurance.** We have not required you to take out any insurance to get this loan, and we may not do so. If you have chosen any insurance in connection with this loan, it is listed here and you will be given a free copy of the policy: [INSURANCE — WRITE "NONE" IF THERE IS NONE].

## 3. HOW THE INTEREST AND THE SERVICE FEE WORK

**3.1** **The interest is a flat, once-off charge.** The interest is a fixed percentage of the principal in row A. It is calculated once, at the start, for the whole loan period. It is **not** charged per month, it is **not** charged per week, and it does **not** compound. Compounding means charging interest on interest — that does not happen here.

**3.2** Because it is calculated once and does not compound, the interest amount in row B does not grow while the loan runs to its due date. Whether you pay on day 5 or day 30, the interest shown in row B is the most you can ever be charged for this loan period. If you pay early you pay **less** than row B — see clause 6.

**3.3** **Worked example.** These are example figures, not your figures. Your figures are in the table in clause 2.

| Item | Example |
|---|---|
| Principal | N$1,000.00 |
| Interest at 25% of the principal, once-off | N$250.00 |
| Service fee, flat | N$50.00 |
| **Total finance charges** | **N$300.00 (30% of the principal)** |
| **Total repayable on the due date** | **N$1,300.00** |

If the loan runs from 1 March to 31 March, the borrower receives N$1,000.00 on 1 March and pays N$1,300.00 on 31 March. The N$300.00 does not increase during March.

**3.4** **The service fee is part of your finance charges.** Namibian law treats every amount you owe us that is not the principal as a "finance charge". The service fee is therefore counted **inside** the legal maximum in clause 3.5 — never on top of it.

**3.5** **The legal ceiling on what we may charge you.** The total of all finance charges under this agreement — interest, the service fee, any charge added when the due date is extended under clause 7, and any other amount you owe us that is not principal — **will never exceed 30% of the principal debt in row A**, this being the maximum finance charge rate determined by the Registrar under the Usury Act 73 of 1968 for a microlending transaction repayable within five months.

**3.6** **Protective clause.** We will not stipulate for, demand or receive any amount that exceeds the maximum finance charge permitted by law at the time. If any figure in this agreement, or any figure we later charge, turns out to exceed that maximum, then:

(a) the excess is void and you do not owe it;

(b) the lawful maximum applies automatically in its place, without either of us having to sign anything; and

(c) if you have already paid the excess, we will refund it to you within 10 business days of it being identified.

**3.7** Default interest under clause 8.3 is dealt with separately and has its own legal ceiling.

## 4. HOW YOU REPAY US

**4.1** **When.** The full amount in row F must be in our hands on or before **[DUE DATE]**. Paying on the due date itself is on time. Paying the day after is late.

**4.2** **How.** You may pay by any of these methods:

(a) **Bank transfer / EFT** into: FNB Namibia, account name Quickserve Financial Services CC, account number 64284783965, branch code 282672. Use **[REFERENCE — YOUR NAME AND LOAN NUMBER]** as the payment reference.

(b) **Cash**, in person at our office at **[PHYSICAL STREET ADDRESS]**, during office hours. We will give you a written receipt on the spot. Never pay cash to anyone without getting a receipt.

(c) **Debit order**, but only if you have signed a separate debit order mandate. See clause 4.6.

**4.3** **Do not pay in any other way.** Do not pay into a personal account, do not hand cash to a person at your workplace, and do not send money to any number other than the one on this agreement. If someone asks you to, refuse and phone us on +264 81 281 9840.

**4.4** **Keep your proof of payment.** Keep the bank transfer confirmation, the deposit slip, the e-wallet confirmation SMS or the receipt we gave you, **until you have our paid-up letter**. If there is ever a dispute about whether you paid, your proof of payment settles it. Please also send a copy of the proof to us on WhatsApp at +264 81 281 9840 on the day you pay, so we can update the loan book immediately.

**4.5** **When a payment counts.** A payment counts on the date the money actually reaches our account or our hands. A transfer sent after banking hours, or over a weekend or public holiday, may only reach us on the next business day. Please allow for that.

**4.6** **Debit order.** Any debit order is set up on a separate signed mandate, through a payment system registered with the Bank of Namibia. If you cancel the debit order, **the debt does not disappear** — cancelling the mandate cancels only the automatic collection, not this agreement, and you must then pay by another method in clause 4.2.

**4.7** **No salary deduction unless you sign for it separately.** We will not ask your employer to deduct anything from your salary unless you have signed a separate written authority for that, on a separate form. Under the Labour Act 11 of 2007 your employer may not make deductions you have not agreed to in writing, and deductions you have agreed to may not add up to more than one third of your pay.

**4.8** **Overpayment.** If you pay us more than you owe, we will refund the difference to your bank account within 5 business days of you asking, or immediately on final settlement, at no charge.

## 5. HOW WE APPLY THE MONEY YOU PAY — PLEASE READ THIS CLAUSE CAREFULLY

**5.1** **The order.** Every payment we receive is applied in this order:

(a) **first**, to any legal costs and collection charges actually incurred (only if clause 8.6 applies);

(b) **then**, to the service fee;

(c) **then**, to interest, including any default interest;

(d) **and only what is left over reduces the principal.**

**5.2** This order applies to every payment, whatever you write on the deposit slip or in a message, and whether or not you tell us to apply it differently. This is agreed between us and it overrides any contrary instruction or note. It does not reduce your rights on early settlement (clause 6), where only pro rata charges apply.

**5.3** **Why this matters to you.** It means that a part payment made early in the loan goes mostly towards the charges and barely reduces the cash amount you borrowed. **Do not be surprised when**

**a part payment leaves the balance looking high.** The example below shows exactly how it works.

**5.4** **Worked example.** Using the example loan in clause 3.3 — principal N$1,000.00, finance charges N$300.00, total repayable N$1,300.00 — the borrower pays N$400.00 on 15 March.

| Step | Applied to | Amount | What is left |
|---|---|---|---|
| 1 | Legal / collection costs | N$0.00 | — |
| 2 | Service fee | N$50.00 | Service fee now N$0.00 |
| 3 | Interest | N$250.00 | Interest now N$0.00 |
| 4 | Principal | N$100.00 | Principal now N$900.00 |
| | **Balance still owing after the N$400.00 payment** | | **N$900.00** |

So a payment of N$400.00 reduced the cash borrowed by only N$100.00. The other N$300.00 cleared the charges. This is normal and it is what clause 5.1 means.

**5.5** The good news in the same example: once the charges are cleared, every further N$1.00 you pay reduces the principal by a full N$1.00, because there is nothing else left for a payment to go to.

**5.6** You may ask us at any time, free of charge, for a written breakdown showing exactly how each of your payments was applied. See clause 13.2.

## 6. PAYING EARLY — YOUR RIGHT TO SETTLE BEFORE THE DUE DATE

**6.1** **You may pay this loan off early, at any time, in one payment or in several.** You may also pay extra at any time. We may not charge you any penalty, fee or additional amount for doing so, and we will not.

**6.2** **You pay finance charges only for the days you actually had the money.** When you settle early, the finance charges are reduced in proportion to the number of days that have passed.

**6.3** **The settlement figure is worked out like this:**

> **Settlement figure = principal still outstanding + (total finance charges × days elapsed ÷ total days of the loan) − finance charges you have already paid**

where "days elapsed" is counted from the issue date to the day you settle.

**6.4** **Worked example.** Using the example loan in clause 3.3 — N$1,000.00 principal, N$300.00 finance charges, 30-day loan — the borrower has paid nothing and settles on day 10.

| Item | Calculation | Amount |
|---|---|---|
| Principal outstanding | — | N$1,000.00 |
| Finance charges for 10 days | N$300.00 × 10 ÷ 30 | N$100.00 |
| Less finance charges already paid | — | N$0.00 |
| **Settlement figure on day 10** | | **N$1,100.00** |

The borrower saves N$200.00 by settling on day 10 instead of day 30.

**6.5** **Ask us for the figure first.** Phone or WhatsApp us on +264 81 281 9840 and we will give you a written settlement quote, **free of charge**, valid for the date stated on it. Pay the exact quoted figure on or before that date and the loan is settled in full.

**6.6** Once you have settled in full we will, without you having to ask and at no cost, give you a paid-up letter, cancel any debit order mandate, and — where we have reported this loan to a credit bureau — update your record with that bureau. See clause 13.3.

## 7. EXTENDING THE DUE DATE (A "ROLLOVER")

**7.1** **What an extension is.** If you cannot pay on the due date, you may ask us to move the due date to a later date. This is called an extension or a rollover.

**7.2** **No new money changes hands.** An extension is not a new loan. We do not pay you anything further and you do not receive any further cash. It is a change to this same loan: the due date moves out, and the amount you owe stays owing.

**7.3** **An extension is only valid if it is in writing and signed by both of us.** We will complete an **Extension Agreement** form which sets out, in Namibian Dollars and cents: the balance outstanding on the day of the extension, the additional finance charge (if any), the new total repayable, and the new due date. You sign it, we sign it, and you get a free copy. **An extension recorded only in our app, or agreed only by phone or WhatsApp, is not valid and does not bind you.** Namibian law does not permit us to increase what you owe without your written signature.

**7.4** **What an extension may cost you.** An extension may carry a further finance charge on the principal still outstanding, calculated at the rate in clause 2. **But that further charge is subject to the ceiling in clause 3.5.** The 30% ceiling applies to this loan as a whole, once — not to each cycle separately. So the most we may ever add on an extension is whatever room is left under the ceiling, and **that may be nothing at all**.

**7.5** **Worked examples of clause 7.4.**

| Situation | Finance charges already charged | Ceiling (30% of N$1,000.00 principal) | Most that may be added on extension |
|---|---|---|---|
| Loan already charged the full 30% | N$300.00 | N$300.00 | **N$0.00 — nothing further may be charged** |
| Loan charged 20% | N$200.00 | N$300.00 | **N$100.00, and never more** |
| Loan charged 15% | N$150.00 | N$300.00 | **N$150.00, and never more** |

**7.6** **WARNING — please take this seriously.** Extending a loan repeatedly is expensive and it is how a small loan becomes a long problem. Every extension pushes the date out without reducing what you borrowed, and because of clause 5.1 your payments clear charges before they touch the principal. If you find yourself asking for a second extension, that is a sign the loan is not affordable. **Talk to us instead about a written payment arrangement that actually reduces the principal.** We would rather agree a realistic plan with you than roll a loan over again.

**7.7** **Limits on extensions.**

(a) The due date may not be extended beyond **five (5) months from the issue date** in clause 2.3. That is a legal boundary for this kind of loan, not a policy of ours.

(b) The maximum number of extensions on this loan is **[MAXIMUM NUMBER OF EXTENSIONS]**.

(c) We are not obliged to grant an extension, and you are never obliged to ask for one. Asking and being refused is not a default.

**7.8** **An extension is an acknowledgement of the debt.** When you sign an Extension Agreement you confirm the balance stated in it. Please check that balance before you sign, and ask for a statement of account if you want to see how it was calculated.

## 8. IF YOU DO NOT PAY (DEFAULT)

**8.1** **What counts as default.** You are in default if:

(a) the total amount repayable is not paid in full by the due date, and no extension has been signed under clause 7; or

(b) you gave us information in your application that you knew was false and that would have changed our decision to lend; or

(c) a court sequestrates your estate or you are placed under administration.

Being a day or two late because a transfer took time to clear is not what this clause is aimed at. Contact us and we will sort it out.

**8.2** **What we will do, in order.**

(a) We will contact you by phone, SMS, WhatsApp or email to find out what has happened and to offer you a payment arrangement.

(b) If that does not resolve it, we will send you a **written letter of demand** to your address in clause 1.2, setting out exactly what is owed — principal, interest, service fee and any default interest, separately — and giving you a clear deadline of not less than [DEMAND PERIOD — AT LEAST 7] business days to pay or to make an arrangement.

(c) Only if that deadline passes will we consider handing the account over, and we will tell you in writing before we do so (clause 8.5).

**8.3** **Default interest.** From the day after the due date we may charge default interest on the amount outstanding at **[DEFAULT INTEREST RATE — NOT MORE THAN 5]% per month**, for a maximum of **three (3) months**. After three months no further default interest may be charged at all, and none will be.

(a) Default interest is subject to the same protective rule as clause 3.6: we will not charge more than the maximum permitted by law, and if the legal maximum is lower than the figure written above, the lower figure applies automatically and any excess is void and refundable.

(b) Default interest is charged on the amount actually outstanding, and it stops the moment you pay.

**8.4** **The* in duplum *rule — a limit that protects you.* In duplum* is a rule of Namibian law which means, in plain words: **unpaid interest and charges can never grow to more than the capital you still owe.** Once the interest and charges that have built up and remain unpaid equal the amount of principal still outstanding, they stop running completely. They do not start again until you make a payment that brings them back below that level. We apply this rule in your favour and we will not charge past it.

**8.5** **Before we hand your account to anyone else.** We will not hand your account to a debt collector or to an attorney, and we will not start legal proceedings against you, without first telling you in writing that we intend to do so. That notice will be sent to your address in clause 1.2 and will tell you the amount owing and how long you have to prevent it.

**8.6** **Legal costs.** If we do have to enforce this agreement through an attorney or a court, you are liable for the legal costs we actually incur, on the attorney-and-own-client scale, together with collection commission, tracing fees and disbursements. **Those costs are always subject to assessment by the court or the taxing master** — meaning a court may reduce them, and we may only recover what a court allows. We will not add a cost to your balance that we have not actually incurred, and every such cost will be itemised on your statement.

**8.7** **Credit bureau.** If you default, we may report that to a registered credit bureau. This can make it harder and more expensive for you to borrow elsewhere. If you then settle, we will report the settlement too — see clause 12.

**8.8** **What we will never do.** Whatever happens with your account, we will not:

(a) threaten you, shout at you, insult you or shame you;

(b) discuss your loan in any group chat, or with your colleagues, your family or your neighbours;

(c) come to your workplace to demand money, or send anyone to do so;

(d) take or hold any of your property;

(e) hold your bank card, your PIN, or any original document of yours — see clause 10;

(f) use any collection method that the law does not allow.

If anyone acting in our name does any of these things, report it to our principal officer and to NAMFISA under clause 14.

**8.9** **Please talk to us.** If you know in advance that you will not be able to pay on the due date, tell us before the due date. A written payment arrangement costs you far less than a default. We will always consider one in good faith.

## 9. IF WE WRITE THE BALANCE OFF INTERNALLY

**9.1** If a balance stays unpaid for a long time, we may mark it in our books as **written off**. That is an accounting decision inside our business about how we report our own figures.

**9.2** **A write-off does not cancel your debt.** You still owe the money, we may still collect it, and we must still give you the notices in clause 8.5. We will not tell you a debt is cancelled unless it truly is.

**9.3** If we ever do agree to cancel or reduce your debt, we will say so in a signed letter that states plainly that the balance is waived and that we will make no further claim. Only such a letter cancels a debt.

## 10. WHAT WE DO NOT TAKE FROM YOU

**10.1** **We do not take or hold your bank card, your PIN, or your original documents.** We will never keep, or make use of, your bank card, your PIN or any banking password, your original Namibian identity document, your original passport or your original driver's licence — not as security, and not to help us collect. **This is prohibited by section 23(1)(f) of the Microlending Act 7 of 2018.**

**10.2** **Copies only.** We take a copy of your Namibian ID, your latest payslip and your three months' bank statements because the law requires us to assess whether you can afford this loan. We look at your originals in front of you and hand them straight back. Nothing of yours is held in our safe.

**10.3** **No blank or incomplete documents.** We may not ask you to sign anything that is blank or incomplete, and we have not. Every figure, date and name on this agreement was filled in before it was put in front of you. If any document we ever give you to sign has an empty space in it, **do not sign it** — hand it back and tell us.

**10.4** **No pre-signed consent to judgment.** This agreement contains no consent to judgment and no acknowledgement of debt signed in advance. If a dispute ever arises, any such document would be a separate document, signed at that time, after a written demand.

**10.5** **Report it.** If any person — including anyone claiming to work for us — asks you for your bank card, your PIN, an original document, or a signature on a blank form, refuse. Then report it to our principal officer and to NAMFISA on **0800 290 500**.

## 11. YOUR DECLARATION THAT YOU CAN AFFORD THIS LOAN

**11.1** By signing this agreement you confirm that:

(a) everything you told us in your application is true and complete;

(b) you have told us about **all** your other debts, including any other cash loans, store accounts, hire purchase agreements and money owed to family or friends;

(c) you have told us about all deductions already coming off your salary;

(d) the payslip and bank statements you gave us are genuine and are your own;

(e) as far as you know, you are not about to be retrenched, suspended or dismissed, and your estate is not under sequestration or administration; and

(f) after paying this loan on the due date you will still be able to meet your ordinary living expenses and your other commitments.

**11.2** **We did an affordability assessment.** Before granting this loan we assessed your income, your existing commitments and your disposable income, and, where we use a credit bureau, we performed a credit check through a registered credit bureau. We went through the assessment with you. A copy of that assessment is on your file and you may ask for a copy of it at any time, free of charge.

**11.3** **Tell us if things change.** If your income drops, you change jobs, you lose your job, or your contact details change, tell us as soon as you can. It is much easier to arrange something before a payment is missed than afterwards.

**11.4** If it turns out that you deliberately gave us false information to obtain this loan, that is a default under clause 8.1(b), and it may also be a criminal offence. Honest mistakes are not what this clause is about.

## 12. YOUR INFORMATION, CREDIT CHECKS AND CONSENT

**12.1** **Credit bureau enquiry — required by law.** You consent to us obtaining a credit report on you from a registered credit bureau before we grant this loan, and at any time while any amount remains owing. Namibian law obliges us to do this; we may not lend to you without it.

**12.2** **Reporting your account.** You consent to us giving registered credit bureaus information about this loan and how you pay it. This includes **good** payment behaviour as well as missed payments. If you pay well, that helps your record.

**12.3** **Which bureaus.** Where we use a credit bureau, it is: [CREDIT BUREAU NAME(S) — FOR EXAMPLE COMPUSCAN CREDIT REFERENCE BUREAU (PTY) LTD AND/OR TRANSUNION CREDIT BUREAU NAMIBIA (PTY) LTD].

**12.4** **What we hold and why.** We keep your name, ID number, contact details, employment and income information, bank details, your ID copy, payslip and bank statements, your affordability assessment, this agreement and your payment history. We use them only to assess your application, to administer and collect this loan, to meet our legal and regulatory duties, and to keep proper accounting records.

**12.5** **Who we may share them with.** Only: registered credit bureaus (clause 12.3); our auditor, accounting officer or bookkeeper; NAMFISA and any other regulator or court that is legally entitled

to them; and, if your account is handed over after the notice in clause 8.5, a debt collector or attorney. **We will not disclose your information to anyone else without your express consent.** This reflects the confidentiality duty in section 27 of the Microlending Act 7 of 2018.

**12.6** **Your employer.** You separately consent to us contacting the employer named in clause 1.3 **for the limited purpose of verifying your employment and your income** before the loan is granted. We will not discuss your loan, your balance or your arrears with your employer without your further written consent.

**12.7** **How long we keep your information.** We keep your loan file for **[RETENTION PERIOD]** years after the loan is finally settled, and then destroy it securely, unless a law or a regulator requires us to keep it for longer.

**12.8** **Your rights.** You may ask us at any time, free of charge, what information we hold about you, and you may ask us to correct anything that is wrong. You are also entitled to obtain your own credit record from a credit bureau and to have errors on it corrected.

**12.9** **Withdrawing consent.** You may withdraw the consent in clause 12.6 at any time by writing to us. You cannot withdraw the consents in clauses 12.1, 12.2 and 12.5 while money is still owing, because we are legally required to make those enquiries and reports.

**12.10** **No group chats.** We will never discuss your account in a WhatsApp group or any other group message.

## 13. WHAT YOU ARE ENTITLED TO GET FROM US

**13.1** **A free copy of this agreement.** You receive a copy of this signed agreement, free of charge, **before or at the moment we hand you the money** — never later. If the loan is concluded over WhatsApp, we send you the signed PDF before the money goes out.

**13.2** **A statement of account, on request.** At any time, you may ask us for a written statement showing every charge we have levied, every payment you have made, and the balance outstanding. The statement is free. If you later want a **duplicate** of a statement we have already given you, we may charge for it, but **never more than N$2.00 per page**.

**13.3** **A paid-up letter.** When you settle in full we will give you a paid-up letter free of charge, without you having to ask, confirming that nothing further is owed. We will also cancel any debit order mandate and tell the credit bureaus in clause 12.3 that the account is settled.

**13.4** **A settlement quote.** Free, at any time, on request (clause 6.5).

**13.5** **The law, in writing.** Copies of the Microlending Act 7 of 2018, the regulations and the NAMFISA standards, our complaints procedure and a complaint form are kept at our office and we will show them to you or give you a copy on request, free of charge.

**13.6** **An explanation.** We must explain this agreement to you in a language you understand, and give you the chance to read it or have it read to you. If you would like anything explained again, at any time during the loan, phone us.

## 14. IF YOU ARE UNHAPPY — HOW TO COMPLAIN

**14.1** **Step 1 — tell us.** Contact us on +264 81 281 9840 or at info@quickserve.group, or come to our office. Please put the complaint in writing if you can. We will acknowledge it within **5 business days** and give you a written answer within **30 days**.

**14.2** **Step 2 — our principal officer.** If you are not satisfied with the answer, ask for the complaint to go to our principal officer, Erastus Taapopi Matheus, at info@quickserve.group. They will respond in writing within a further **14 business days**.

**14.3** **Step 3 — NAMFISA.** If you are still not satisfied, you may take the complaint to the Namibia Financial Institutions Supervisory Authority, which regulates us. **We will give you a NAMFISA complaint form free of charge and we will not obstruct or discourage you in any way.**

| NAMFISA | Detail |
|---|---|
| Department | Microlending and Credit Agreements |
| Physical address | 51-55 Werner List Street, Gutenberg Plaza, Windhoek |
| Postal address | P O Box 21250, Windhoek, Namibia |
| Toll-free | 0800 290 500 |
| Email | complaints@namfisa.com.na |

**14.4** Complaining costs you nothing and it will never count against you on this loan or on any future application to us.

## 15. ADDRESSES FOR NOTICES AND LEGAL DOCUMENTS

**15.1** **What* domicilium citandi et executandi *means.* ***It is the address you formally choose for receiving legal notices and court documents. In plain words:*** *it is the address where anything official may be delivered to you, and delivery there counts as delivery to you even if you were not there and did not actually collect it.** That is why the address must be correct and must be kept up to date.

**15.2** You choose as your *domicilium citandi et executandi* the physical street address in clause 1.2. You confirm that it is a real, physical street address in Namibia at which a person can attend, and not a post box.

**15.3** We choose as our *domicilium citandi et executandi* the physical address in clause 1.1.

**15.4** **Changing your address.** You may change your chosen address by giving us written notice. The new address must also be a physical street address in Namibia. The change takes effect **10 business days** after we receive the notice.

**15.5** **Ordinary notices.** For everything that is not a court document — reminders, statements, settlement quotes, demand letters — you agree that we may also use email, SMS or WhatsApp on the details in clause 1.2. A message sent that way is treated as received on the day it is sent, unless we get a delivery failure. Please tell us straight away if your number changes.

**15.6** Court documents and legal process will be delivered only to the address in clause 15.2.

## 16. GENERAL TERMS

**16.1** **This is the whole agreement.** This agreement, together with the pre-agreement quotation you were given before you signed, the Schedule of Fees and Charges attached as Annexure A, the debit order mandate (if any) attached as Annexure B, any instalment schedule attached as Annexure C, and any Extension Agreement signed under clause 7, is the entire agreement between us. Nothing said before signature that is not written in these documents forms part of it.

**16.2** **Changes must be in writing and signed by both of us.** No change to this agreement is valid unless it is written down and signed by both you and us — **unless the change reduces what you owe**, in which case it takes effect immediately in your favour. This reflects section 28 of the Microlending Act 7 of 2018. Nobody may change your obligations by phone, by WhatsApp, or by entering something in our app.

**16.3** **If we are lenient, we do not lose our rights.** If we allow you extra time or overlook a late payment on one occasion, that does not mean we have given up any right, and it does not change the agreement. Equally, if we have been lenient before, we will give you fair written notice before we stop being lenient.

**16.4** **Severability.** If any clause of this agreement is found to be unlawful or unenforceable, that clause is treated as removed and the rest of the agreement remains in force.

**16.5** **Transferring this agreement.** We may transfer our rights under this agreement to another registered credit provider, but only on written notice to you, and your rights and the amounts you owe do not change as a result. You may not transfer your obligations to anyone else.

**16.6** **Governing law.** This agreement is governed by the law of the Republic of Namibia, in particular the Microlending Act 7 of 2018, the regulations and NAMFISA standards made under it, and the Usury Act 73 of 1968.

**16.7** **Courts.** In terms of section 45 of the Magistrates' Courts Act 32 of 1944 you consent to a Magistrate's Court having jurisdiction to hear any claim under this agreement **even if the amount claimed is more than the normal limit of that court**. Any claim will be brought in the Magistrate's Court for the district in which you live or work. We do not ask you to consent to being sued in a court that has nothing to do with where you live.

**16.8** **Our records.** A certificate signed by our principal officer setting out what you owe is proof of that amount **on the face of it** — meaning a court will accept it as a starting point. **You are free to dispute it**, and if you do, we must prove the amount in the ordinary way. You may ask for the underlying statement of account at any time under clause 13.2.

**16.9** **Signing and copies.** This agreement may be signed in two identical originals, one for you and one for us. A signature applied electronically, and a signed copy sent by email or WhatsApp, is as valid as a signature in ink.

**16.10** **Meaning of words.** "Business day" means any day except a Saturday, a Sunday or an official Namibian public holiday. "N$" means Namibian Dollars. Headings are for convenience only and do

not affect meaning. Words in the singular include the plural, and the other way round.

## 17. YOUR DECLARATIONS BEFORE SIGNING

Please tick each box yourself. Do not let anyone tick them for you.

| | Declaration |
|---|---|
| [ ] | I received a written quotation setting out the principal, the interest, the service fee, the total finance charges and the total repayable **before** I agreed to this loan. |
| [ ] | The terms of this agreement were explained to me in **[LANGUAGE]**, which is a language I understand. |
| [ ] | I read this agreement myself, **OR** it was read out to me in full. (Delete whichever does not apply.) |
| [ ] | An interpreter was used: **[INTERPRETER FULL NAME, OR "NONE"]**. |
| [ ] | The cost of this loan was explained to me. I know that I must repay **N$ [TOTAL AMOUNT REPAYABLE]** on **[DUE DATE]**. |
| [ ] | I understand clause 5: my payments go to charges first and only then reduce the money I borrowed. |
| [ ] | I understand clause 7: extending the due date does not give me new money, must be signed by both of us, and repeated extensions are expensive. |
| [ ] | No document I have signed today was blank or incomplete when I signed it. |
| [ ] | QuickServe Cashloan has not taken and does not hold my bank card, my PIN, my original ID, my original passport or my original driver's licence. |
| [ ] | I was given the opportunity to ask questions, and my questions were answered. |

## SIGNED BY THE PARTIES

Signed at **[PLACE OF SIGNATURE]** on **[DATE OF SIGNATURE]**.

**THE BORROWER**

| | |
|---|---|
| Full names | **[BORROWER FULL NAMES]** |
| Namibian ID number | **[ID NUMBER]** |
| Signature | ..... |
| Date | ..... |

**FOR THE LENDER — Quickserve Financial Services CC t/a QuickServe Cashloan**

| | |
|---|---|
| Full names | **[AUTHORISED REPRESENTATIVE FULL NAMES]** |
| Position | **[POSITION]** |
| Signature | ..... |
| Date | ..... |

**WITNESS 1** (must be present when the borrower signs)

| | |
|---|---|
| Full names | **[WITNESS 1 FULL NAMES]** |
| ID number | **[WITNESS 1 ID NUMBER]** |
| Signature | ..... |
| Date | ..... |

**WITNESS 2**

| | |
|---|---|
| Full names | **[WITNESS 2 FULL NAMES]** |
| ID number | **[WITNESS 2 ID NUMBER]** |
| Signature | ..... |
| Date | ..... |

## RECEIPT — TO BE SIGNED WHEN THE MONEY IS HANDED OVER

I confirm that:

1. I received **N$ [PRINCIPAL]** in cash / by transfer on **[DATE MONEY RECEIVED]**; and
2. I received a **free copy of this signed agreement before or at the same time** as the money was paid to me; and
3. I received a copy of the Schedule of Fees and Charges (Annexure A).

| | |
|---|---|
| Borrower's signature | ..... |
| Full names | **[BORROWER FULL NAMES]** |
| Date and time | ..... |
| Paid out by (lender's representative) | ..... |

## FOR OFFICE USE — STAFF DECLARATION

I confirm that before this loan was paid out: a credit bureau enquiry was performed where a credit bureau was used; a written affordability assessment was completed and filed; the terms were explained to the borrower in the language recorded above; every field in this agreement was complete before the borrower signed; **no bank card, PIN, original identity document, original passport or original driver's licence was taken or retained**; and the borrower was handed a free copy of the signed agreement at or before payout.

| | |
|---|---|
| Staff member full names | **[STAFF FULL NAMES]** |
| Signature | ..... |
| Date | ..... |